

25STCV19557 25STCV19557

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C513%2C07%2F15%2F2026

Source SHA-256: 1df846a538dc63d89c30367b0623e28196ff750a9bba7c03cd7c48cfab4907e6

Case Number: 25STCV19557 Hearing Date: July 15, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

ANTONIO AGUILAR

;

Plaintiff,

vs.

GENERAL MOTORS, LLC

, et al.;

Defendants.

Case

No.:

25STCV19557

Hearing

Date:

July
15, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

motion to be relieved as counsel for
plaintiff

MOVING PARTY: Plaintiff's Counsel, Larry Chae
of Strategic Legal Practices, APC

RESPONDING PARTY: Unopposed

Motion to be Relieved as Counsel for Plaintiff

The court
considered the moving papers filed in connection with this motion. No opposition papers were filed.

DISCUSSION

Larry Chae on behalf of Strategic Legal Practices, APC ("Plaintiff's Counsel") moves to be relieved as counsel for plaintiff Antonio Aguilar ("Plaintiff") in this action.

"The question of granting or denying an application of an attorney to withdraw as counsel (Code Civ. Proc., § 284, subd. 2) is one which lies within the sound discretion of the trial court 'having in mind whether such withdrawal might work an injustice in the handling of the case.'" (People v. Prince (1968) 268 Cal.App.2d 398, 406 [internal quotations omitted].) The court should also consider whether the attorney's "withdrawal can be accomplished without undue prejudice to the client's interests." (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

For a motion to be relieved as counsel under Code of Civil Procedure

section 284, subdivision (2), California Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel -- Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subdivision (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subdivision (1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel -- Civil form (MC-052)); (3) service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel -- Civil form (MC-053)).

The court finds that Plaintiff's Counsel (1) has served Plaintiff with the moving papers filed in connection with this motion (i) at Plaintiff's last known address, which Plaintiff's Counsel has been unable to confirm is current or locate a more current address after making reasonable efforts to do so, including by mailing the motion papers to Plaintiff's last known address, return receipt requested and (ii) by electronic service, directed to the email used to communicate during this action, and (2) has served defendant General Motors, LLC with the moving papers filed in connection with this motion by email. (MC-052, ¶¶ 3, subds. (a)(2), (b)(2)(a); June 1, 2026 Proof of Service.) The court also finds that Plaintiff's Counsel has shown sufficient reasons why the motion should be granted, and why Plaintiff's Counsel has brought the motion under Code of Civil Procedure section 284, subdivision (2) instead of filing a consent under section 284, subdivision (1). (MC-052, ¶ 2.)

The court therefore grants Plaintiff's Counsel's motion to be relieved as counsel for Plaintiff.

Larry Chae of Strategic Legal Practices, APC will be relieved as counsel of record for plaintiff Antonio Aguilar effective upon the filing of the proof of service of the signed "Order Granting Attorney's Motion to be Relieved as Counsel – Civil" on the client.

The court orders Larry Chae of Strategic Legal Practices, APC (1) to give notice of this ruling and the signed "Order Granting Attorney's Motion to be Relieved as Counsel – Civil" to plaintiff Antonio Aguilar, and to all other parties who have appeared in this action, and (2) to file a proof of

service of the notice of this ruling and the signed "Order Granting Attorney's Motion to be Relieved as Counsel – Civil" on plaintiff Antonio Aguilar and all other parties who have appeared in this action no later than July 30, 2026.

IT IS SO ORDERED.

DATED: July 15, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court